

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 28, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Mr. Johnson and Dr. Aldrich, agenda item #21 was removed from the Consent Agenda. Upon request by Mr. White, and pursuant to support received by Mr. Cook and Dr. Aldrich, agenda item #26(b) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 14, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk’s Office. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the applications to Finance Committee.

Mayor Collins opened a public hearing for a transfer of ownership and location of retail liquor license application filed with the City Clerk’s Office for Dillon Companies, LLC, a Kansas limited liability company d/b/a King Soopers, 3702 Dell Range Blvd., Cheyenne, Wyoming (license currently held by Avanti, Inc., d/b/a Dell Range Liquor, 3806 Dell Range Blvd. #4, Cheyenne, Wyoming). Kevin Georges expressed concern regarding the proposed transfer of the license to a major corporation and recent prior retail liquor license transfers that have went to large corporations. Mr. Georges expressed the need of smaller local businesses having the opportunity to obtain retail liquor licenses. Matt Kim-Miller, attorney with Holland & Hart, LLP (applicant’s representative), provided information on the request noting the transfer involves a long-standing package liquor store location which will be expanded, noting he believes the location is appropriate for continued package liquor services for the community. Upon inquiry, City Clerk Kris Jones explained the license was originally issued several years ago and the request is for a transfer of location and ownership and that the additional retail liquor license awarded to the City based on the 2020 census has not been awarded yet. Comment was made regarding the lack of liquor licensing options in the state. Upon further inquiry, Ms. Jones advised it was her understanding

that King Soopers will expand the existing package liquor location and open the access from the King Soopers store into the current liquor store location. Mr. Kim-Miller confirmed the plan is to expand the existing liquor store space into the prior Hallmark location and there will be a doorway into King Soopers where point of sale will occur. Upon inquiry, Mr. Kim-Miller advised the proposal is to have doors between the grocery and liquor spaces. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee.

Mayor Collins opened a public hearing to hear public comment regarding the City's intent to enter into a contract with Comea Shelter to grant a subaward from Coronavirus State and Local Fiscal Recovery Funds to be used to increase available emergency housing and temporary shelter for Cheyenne's homeless population. There being no comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE – 3rd READING – Amending Chapter 13.04 – Public Utilities Generally; Chapter 13.08 – Water Service System; Chapter 13.12 – Sewer System; Chapter 13.16 – Storm Sewers; and Chapter 13.20 – Wastewater Treatment & Disposal; of Title 13 – Public Services, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated February 17, 2022, seconded by Mr. Johnson. Upon inquiry, Brad Brooks, Director of Board of Public Utilities, provided information on the proposed substitute noting the language changes in sections 13.04.050 and 13.04.120. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4416)

ORDINANCE – 2nd READING – Amending the Unified Development Code (UDC) of the City of Cheyenne, Wyoming, to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the Permissibility of Various Uses. Brenda Birkle and Dan Dorsch, Affordable Housing Task Force, spoke in support of the ordinance noting it will contribute to affordable housing in the community. Charles Bloom, Director of Planning and Development, provided information on a request to include a change for “Entertainment, Amusement, Recreation-Other” from a Conditional Use to a Permitted use in the CBD zoning district noting the change would remove the requirement for these types of businesses in the downtown area to go before the Board of Adjustment for approval resulting in being able to go into business sooner. Mr. Bloom advised staff has reviewed the change request and believes it is appropriate for the downtown CBD zone. Reporting for Public Services Committee, Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend Attachment “A” to change “Entertainment, Amusement, Recreation-Other” from a Conditional Use to a Permitted Use in the CBD zoning district, seconded by Mr. Segrave. Upon inquiry related to a scenario where an outdoor shooting range business could potentially open a business in the downtown area without notification, Mr. Bloom and Mr. Johnson provided information on existing ordinances that would prevent that type of business in the downtown area. Motion to amend by Attachment A carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with exception of Dr. Rinne voting “no”.

ORDINANCE –2nd READING – Amending the Unified Development Code (UDC) to create a Common Landscaping Plan and definition of Development Footprint. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Mr. Cook moved to amend by substitute dated February 24, 2022, seconded by Dr. Rinne. Charles Bloom, Director of Planning and Development, provided information on the substitute noting the acreage was changed from 100 to 80 for when developments can submit a common landscape plan. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Annexing to the City of Cheyenne, Wyoming, land located east of Southwest Drive, south of I-80. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use to AG Agricultural for land located east of Southwest Drive, south of I-80. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to HI Heavy Industrial for land located north of Campstool Road, west of Progress Circle. Upon inquiry, Mr. Cook confirmed the zone change request is to allow for outdoor storage. Mr. Cook moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Creating a new Section 9.08.120, Malicious Harassment Based on Race, Color, Religion, Ancestry, Sex, Sexual Orientation, Gender Identity and Expression, National Origin, or Disability, of Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming. Mayor Collins announced there would be a 3-minute time limit for speakers and that comments and discussion should remain cordial. Speaking in opposition of the ordinance were: Robin Goodspeed, Eric Crosby, Jay Meyer, Andrew Dimit, Steven Edgar Olson, Nick Dawson, Alicia Green, Bob Wilson, Steve Milliad, Matt Freeman, Angelina Freeman, Sandra Cane and Mark Moss. Topics discussed included: existing statutes, ordinances and policies that address bullying, harassment and violence; potential of ordinance being harmful towards individuals with opposing beliefs; affect the ordinance may have on religious groups; national events relating to similar ordinances in other states; confusion and challenges relating to the ordinance; biblical beliefs; how reporting offences to the Police Department will be handled; concern that non-supporters of the ordinance don’t support the protected groups outlined in the ordinance; belief that Cheyenne is not in need of the ordinance; suggestion to approach harassment concerns in other ways and request to allow more community input related to the ordinance. Speaking in support of the ordinance were: Amber Leyba and Dale Steenbergen, Greater Cheyenne Chamber of Commerce, Troy Rumpf, Stuart Campbell and Keil Bergeron. Topics discussed included: ordinance importance relating to economic development; witnessed threats and slurs; importance of ordinance as a statement of support for the protected groups and the need for the ordinance. Additional comments

were made that some companies have concerns related to locating in Cheyenne and recruitment as there are perceptions that issues and biased attitudes exist locally, and their desire is for every staff member to be treated with respect. It was also noted that some military members stationed here have experienced harassment by local businesses. It was acknowledged that laws exist on the federal level and opposing views were voiced on enforcement of those laws. Reporting for Committee of the Whole, Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Dr. Aldrich moved to amend by adding “political affiliation” to the appropriate sections throughout the ordinance that reference the protected classes, seconded by Mr. Johnson. Dr. Aldrich advised the purpose of the amendment is due to past physical attacks and vandalism at local political party’s headquarters. It was noted other states have included political affiliation in similar ordinances. Upon inquiry, Kris Jones, City Clerk, advised it would be appropriate to include “political affiliation” to other sections in the ordinance for clarification of referenced protected groups and noted that was the intention of the amendment. Motion to amend carried. Voting “yes” all members of the governing body. Dr. Aldrich moved to amend Section 9.08.120 by removing Section A-3. Motion died due to lack of a second. Dr. Aldrich moved to amend Section 9.08.120 by adding a new Section E – “This Ordinance will be considered null and void when applied to citizens in legitimate exercise of rights enumerated under Article 1, Sections 2, 3, 20, and 36 of the Wyoming Constitution and the First Amendment of the United States Constitution. Motion died due to lack of a second. References were made to previous Supreme Court cases involving constitutional protected class cases, some of which involved religious affiliations and beliefs. Appreciation was expressed to everyone who has put effort into the ordinance, and it was further noted that everyone in the community should be protected. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”.

ORDINANCE –2nd READING – Amending various sections of Chapter 12.20, Cemeteries, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne pertaining to Cemetery fees. Mr. White moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) repealing UDC 5.4.7, UU – Urban Use Overlay District, and creating UDC 5.6.9, UU – Urban Use Overlay District – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public District to CB Community Business for land located southwest of and adjacent to the intersection of Cleveland Avenue and U.S. 30 – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Adopting the revised City of Cheyenne, Wyoming Investment Policy Statement. Motion (per Consent Agenda) carried. (#6210)

[CA] RESOLUTION – Authorizing the City of Cheyenne to approve and file the Wyoming Division of Victim Services Funding Application State Fiscal Year 2023 and 2024, July 1, 2022 to June 30, 2024. Motion (per Consent Agenda) carried. (#6211)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sweetgrass, 9th Filing, a Replat of all of Lot 1, Block 4, Sweetgrass, 1st Filing situated in the N1/2 of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of East Murray Drive west and adjacent to Sweetgrass Drive). Casey Palma, Palma Land Planning, agent for the owner, advised a replat was previously planned for a multi-family parcel in the Sweetgrass PUD. He provided details of the Sweetgrass development history noting the family who owned the property supported multi-family development and explained that in general the Sweetgrass development has been decades in the planning. Mr. Palma advised the master plan included a 7.68 acre plat for 168 units which is now for 116 units which is within the provisions of PlanCheyenne for urban residential stipulations and noted the exception is the PUD is unique. He provided additional information on proposed open space, land reserved for public schools and public parks. Comments and concerns were raised regarding proposed density of the project and related anticipated reduction of street infrastructure. Upon inquiry, Mr. Palma reported it is anticipated there will be many additional filings relating to the continued development of Sweetgrass which will take years to complete. Following concerns and comments regarding setting a precedence on high density and size requirements with the plat, Charles Bloom, Director of Planning and Development, advised that every plat filed will be considered on its own. Comment was made that the proposed plat is fully compliant with the PUD as it is written today. Mr. Cook moved to adopt, seconded by Mr. Johnson. Concern was expressed relating to 400 people residing in the vicinity if the final plat is approved, possible issues with homeowner's associations relating to maintenance and the challenge to provide adequate parking. Motion failed due to a tie vote. Voting "yes" - Mayor Collins, Mr. Cook, Mr. Johnson, Dr. Rinne and Mr. Roybal. Voting "no" - Dr. Aldrich, Mr. Esquibel, Mr. Laybourn, Mr. Segrave and Mr. White.

RESOLUTION – Adopting a fee schedule for Planning and Development projects. Brad Emmons, AVI, expressed appreciation to Planning & Development Director Charles Bloom for his efforts on the resolution. Mr. Emmons voiced concern regarding the proposed revised fee schedule and the proposed requirement to obtain a property appraisal for right-of-way vacations, as currently appraisals are taking approximately 8 weeks to complete. Mr. White moved to adopt, seconded by Mr. Esquibel. Mr. White moved to amend Attachment "A" by substitute dated February 22, 2022, seconded by Mr. Esquibel. Charles Bloom, Director of Planning and Development, provided details for the proposed substitute which includes a change to the street vacation fee and noted it is up to the governing body if they choose to require the proposed appraisal requirement and fee. Motion to amend Attachment "A" carried. Voting "yes" – all members of the governing body. Upon inquiry, Mr. Bloom provided information on the \$50.00 permit fee explaining it is due to the amount of Planning and Development staff time required to perform reviews of numerous permits. He noted the proposed fee would generate approximately \$23,000.00 annually. John Edwards, Saddle Ridge Subdivision, expressed concern on fee increases that will have an effect on affordable housing. Mr. Bloom provided information on staff review time on the different types of plats submitted and requested consideration to require a higher fee for expedited plats as opposed to preliminary and final plats. Discussion topics included an option of capping the price per lot to \$2,500.00, desire to avoid deterring development and option to postpone for additional discussion and review. Mr. Roybal moved to postpone to March 14, 2022, seconded by Mr. Segrave. Dr. Rinne raised a point of order regarding the motion to postpone as it was made on top of the motion to amend. Upon inquiry, City Attorney Stefanie

Boster advised the motion to amend could either be approved or denied prior to postponement and City Clerk Kris Jones advised the motion to postpone was out of order. Mayor Collins ruled the motion to postpone out of order and called for a vote on the motion to amend. Motion to amend failed. Voting “no” – all members of the governing body. Mr. Roybal moved to postpone to March 14, 2022, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body.

RESOLUTION – For Governing Body approval of a one-year Bronze Boot Sponsor relationship between Cheyenne Frontier Days and Miller/Coors for 2022. Mr. White moved to adopt, seconded by Mr. Esquibel. Mr. White moved to amend by substitute dated February 23, 2022, seconded by Mr. Segrave. City Clerk Kris Jones explained the amendment is to correct the sponsorship type due to incorrect information originally submitted to the Clerk’s office. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6212)

[CA] RESOLUTION – To authorize the application for the continuation grant in the amount of \$318,375.00 from the Corporation for National and Community Service for the City of Cheyenne Office of Youth Alternatives Foster Grandparent Program – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for the ‘Tales and Ales’ Pub Crawl to be held on April 2, 2022 – referred to Public Services Committee. (Sponsors – Mr. Cook, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

[CA] RESOLUTION – Renaming Ernste Drive to Richard Martin Drive – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Certifying Planning Commission action amending the Cheyenne Area Future Land Use Plan & Transportation Map of PlanCheyenne Plan to change the land use category from open space and parks to Community Business for an area of land located southwest of the intersection of Cleveland Ave and U.S. 30, correct land use categories of lands throughout the City inadvertently applied with previous map adoption, modify roadway designations of specific roads that inadvertently applied with previous map adoption, and modify roadway designations in accordance with previously approved plans – referred to Public Services Committee. (Sponsor – Mr. Cook)

Grant of Right-of-Way Easement on City Owned Property, per Exhibit A, between the City of Cheyenne and Cheyenne Light, Fuel and Power Company for a 150’ wide right-of-way and easement for construction and maintenance of overhead power facilities. Mr. White moved to approve, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated February 18, 2022, seconded by Mr. Cook. Mayor Collins noted the substitute adds a cost to the right-of-way and a reversion clause so that if the right-of-way is not used, it will revert back to the city. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#7477)

Contract between the City of Cheyenne and the Comea Shelter granting a subaward to be used to increase available emergency housing and temporary shelter to support Cheyenne's homeless population (Coronavirus State and Local Fiscal Recovery Funds). Mr. White moved to approve in an amount not to exceed \$650,000.00, seconded by Dr. Aldrich. Comment in support of the contract was made and it was noted the Governing Body acknowledges the concerns for the homeless population. Motion carried. Voting "yes" – all members of the governing body. (#7478)

[CA] Professional Services Agreement between the City of Cheyenne and Kyle M. Brandon for City Public Defender legal counsel services (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$86,400.00 annually). (#7479)

[CA] Professional Services Agreement between the City of Cheyenne and Veolia ES Technical Solutions, LLC, for the Hazardous Waste Disposal Services Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,000.00). (#7480)

[CA] Professional Services Agreement between the City of Cheyenne and Jones Land Surveying, Inc., for professional Land Surveying Services (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$25,000.00). (#7481)

[CA] Professional Services Agreement between the City of Cheyenne and Steil Surveying Services, LLC, for professional Land Surveying Services (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$25,000.00). (#7482)

[CA] Agreement between the City of Cheyenne and Cheyenne Regional Air Service Focus Team (CRAFT) for Minimum Revenue Guarantee Payment (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Fire and Rescue Department, and UC Health c/o Cheyenne Medical Specialist to provide occupational medical exams (General Fund) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the Carbon Asset Network (CAN) establishing terms and conditions for land manager partnerships – referred to Finance Committee.

[CA] Agreement between the Board of Public Utilities and Polo Ranch Company regarding Quarter Circle Five subdivision well development and associated water entitlement – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7118 for the Memorandum of Understanding between the City of Cheyenne and Saddle Ridge, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 7th and 9th Filings (Community Facility Fees). Motion (per Consent Agenda) carried. (#7118)

[CA] Contract Modification #1 to Contract #7119 for the Memorandum of Understanding between the City of Cheyenne and WJE, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 8th, 9th, 10th, 11th, 12th and 13th Filings (Community Facility Fees). Motion (per Consent Agenda) carried. (#7119)

[CA] Contract Modification #1 to Contract #7405 for the Contingency and Development Agreement between the City of Cheyenne and Project Bison to perform duties as outlined in the Wyoming Business Council Business Ready Community Grant Program for a Managed Data Center Cost Reduction Grant to recoup accrued utility expenses to replace “Project Bison” with “Microsoft” throughout (WBC Managed Data Center Grant) – referred to Finance Committee.

[CA] Consideration of Bid #E-11-22 for furnishing eight (8) light poles (17th Street Lighting), for the City of Cheyenne, Engineering Department (Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (acted bid from Cheyenne Winlectric Company, Cheyenne, in an amount not to exceed \$140,576.00).

[CA] Consideration of Bid #S-11-22 for a contract between the City of Cheyenne and Z & Z Asphalt, for the 2022 Crack Seal #1 Project (2019-2022 1% Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Under other business:

Mr. Laybourn acknowledged the recent passing of prior City Council member Bob Storey noting he was a Council member from 1981-1988 and was involved with issues relating to the 1985 flood.

Dr. Aldrich provided information on the upcoming Delta Kappa Gamma used book sale that will be held March 5-6, 2022 in the former Big Lots building at 3741 E. Lincolnway, noting proceeds support many local causes.

Mr. White expressed appreciation to Mr. Johnson and Board of Public Utilities staff for their assistance with the ordinance amending Chapter 13.04, noting it took considerable time to draft.

Mr. White provided information on a benefit to be held on March 2, 2022 from 5-7 p.m. at The Metropolitan for the South High “We The People” student civic program. He noted students in the program study the Constitution and travel to participate in competitions.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:23 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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